

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

STIPULATION AND ORDER ON MOTION TO COMPEL

IT IS HEREBY STIPULATED AND AGREED between Complainant Samsung Electronics America, Inc. (“SEA”) and Respondent SM Line Corporation (“SM Line”) (collectively, “the Parties”) by and through their attorneys that:

1. The Parties consent to SEA filing a Motion to Compel and for Sanctions for Spoliation of Evidence (“Motion”) totaling twenty (20) pages (Dkt.78) in excess of the ten (10) page limit provided under Rule 46 CFR 502.71;
2. SM Line’s time to oppose SEA’s Motion is extended from April 3, 2024 until April 12, 2024 at 11:59 p.m.; and
3. SM Line’s opposition to said Motion shall not exceed twenty (20) pages.

Dated: April 4, 2024

HOLLAND & KNIGHT LLP

MONTGOMERY MCCracken WALKER
& RHOADS LLP

By: /s/ Cristopher Nolan

Christopher Nolan, Esq.
Attorneys for Complainant
31 West 52nd Street
New York, New York 10019
Tel. (212) 513-33007

By: /s/ Kathleen Murphy

Kathleen M. Murphy, Esq.
Attorneys for Respondent
437 Madison Avenue
New York, NY 10022
Tel. (212) 867-9500

SO ORDERED:

Hon. Alex M. Chintella
Administrative Law Judge
Office of Administrative Law Judges
Federal Maritime Commission